

DECODED EXPLAINED

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Why Has the Centre Opposed Creamy Layer for SC/STs?

Why has the Centre opposed creamy layer for SC/STs?

What did the Centre argue in the Supreme Court? What is the context for its position? What is sub-categorisation and what is the creamy layer concept? What is the Centre's position on sub-categorisation? What could happen next in the Supreme Court?

Abhinav Lakshman

The story so far:

Proposing a batch of petitions seeking a "creamy layer" exclusion from the reserved categories of Scheduled Castes and Scheduled Tribes (like that for Other Backward Classes), the Union government recently reiterated in the Supreme Court of India that this concept of carving out exclusions within reserved categories was not applicable to the SC and ST classifications.

What brought this about?

The current batch of petitions pending before the Supreme Court largely came through after a significant judgment of the top court in August 2024 (*Daivinder Singh*), which recognised the "heterogeneity" of communities classified as SC and ST and the graded backwardness among the communities already in these constitutional lists. While doing so, a seven-judge Bench of the Court, headed by then Chief Justice of India, D.Y. Chandrachud, granted sanction to State governments to sub-categorise within the existing lists of SCs and STs to ensure that the benefits of reservations reach communities that have been routinely crowded out by relatively less backward communities within their respective lists.

However, in this judgment, Justice (Retd.) B.R. Gavai, in the opinion he had authored, noted that the problem of graded inequality and continued crowding out of certain SC/ST communities from benefits like reservations in public education and employment required that the government seriously start considering introducing a concept of "creamy layer" exclusions within these lists as well, as introduced for the OBCs in the landmark *Indira Sawhney* judgement (1992).

This particular observation had ignited protests from several SC and ST associations across the country, and the Union government and the ruling Bharatiya Janata Party (BJP) were

quick to take a strong position against the introduction of a creamy layer concept for SC and ST quotas. But this opened the door for petitions seeking orders that the Union government introduce this concept for SC/ST quotas as well, which prompted the Supreme Court to issue a notice to the Centre earlier this year. The Court also asked the Union government for a report on the action taken since the 2024 *Daivinder Singh* judgment, intertwining sub-categorisation and creamy layer exclusion once again.

What is the context for this position?

The most recent reiteration of the Union government in the Supreme Court against introducing the creamy layer exclusion for SC/ST quotas comes at a time when a significant section of students in the country (largely from the General Category) – traditionally been sympathetic to the ruling BJP establishment – have been participating in the **Reservation Hatao Andolan (RHA)**. This a movement came into being through an Instagram page, soon after the countrywide student movement ignited by the Cockroach Janta Party led to the resignation of Education Minister Dharmendra Pradhan over the issue of the NEET paper leak. The RHA page on Instagram has garnered over 5 million followers and is being given direction by key actors of the anti-reservation movement such as Ajeet Bharti, Anuradha Twari, and Neha Das. All three have been consistently vocal for the rights of General Category students and job seekers and had also helped mobilise and amplify the protests against the UGC's 2026 social equity rules earlier this year over alleged discrimination against General Category students. One of the principal demands of the RHA is to abolish all socio-economic caste reservation categories and only retain "income-based reservation".

What does graded inequality, sub-categorisation and creamy layer stand for?

The idea of sub-categorisation is to divide an existing quantum of reservation for a single category to ensure access for unequal groupings within that category. The idea of a "creamy layer" exclusion is meant to identify individuals within a particular categorisation who may have escaped certain effects of discrimination or backwardness that their communities at large may still be facing, and then exclude them from availing themselves of reservation altogether. Both tools are aimed at restricting the crowding out of relatively more backward communities or individuals within a given category by relatively forward communities or individuals in that category.

Where does creamy layer apply and where is sub-categorisation being done?

While the government has maintained that the

concept of creamy layer exclusions applied to OBC communities only, we could argue that the Economically Weaker Sections (EWS) reservation also embodies a similar idea. One criterion for availing this quota is that a person must not be eligible for any benefits meant for SCs, STs, or OBCs and must also belong to a family below a prescribed income and asset threshold. In this sense, the EWS framework also excludes those deemed economically better off, much like the creamy layer exclusion for OBCs, although the criteria and method of calculating income and assets are different.

The tool of sub-categorisation, however, has been more widely wielded – for SCs, STs, and OBCs – but more by State governments than by the Central government. The only arguable example of the Centre using sub-categorisation nationally has been within the ST category for admissions to Eklaya Model Residential Schools, where the ST quota is further divided to ensure minimum representation for Particularly Vulnerable Tribal Groups.

What is the Centre's position and rationale?

Even though the Union government is yet to make public its vision for using the sub-categorisation tool nationally for SC, ST, and OBC categories, its opposition to the introduction of the creamy layer concept in SC/ST quotas rests on the thinking that this would require exclusion of either certain communities or individuals from the benefit of reservation altogether – a power that the Social Justice Ministry has argued rests solely with Parliament. Further, it has argued that judicial precedent so far has never called for or suggested creamy layer exclusion for SC/ST.

Though it has taken this position in the ongoing cases before the top court, the Centre has notably left a potential roadmap for what it would take for it to consider such a move. It has said that such modifications to the reservation policy "should be preceded by a holistic review and thorough empirical study, including socio-economic data of reserved category beneficiaries" but stressed that it was not within the domain of the judiciary to direct it.

While the government has been clear about the classifications to which creamy layer exclusions would apply, it has been less emphatic about the scope of sub-categorisation. In its first term, the Modi government indicated that it was keen on sub-categorising OBCs nationally. The National Commission for Backward Classes recommended it in 2015, and the Centre formed the Justice (Retd.) G. Rohini Commission for this task in 2017. The report was submitted three ago years, but has not seen the light of day.

Similarly, when the issue of sub-categorisation of SCs was gaining prominence ahead of the 2024 Lok Sabha elections, both in the Supreme Court and in States such as Telangana and Andhra Pradesh, the Union government constituted an internal committee headed by the Cabinet Secretary to examine how the grievances of the Madigas could be addressed. But since the *Daivinder Singh* judgment paved the way for sub-categorisation in principle, the Centre has remained silent on the issue.



Demonstrators take part in a Reservation Hatao Andolan rally in Nagpur, Maharashtra. PTI

Why Has the Centre Opposed Creamy Layer for SC/STs?

Sub-Categorisation

- Divides an existing quantum of reservation for one category into sub-groups.
- Aims to ensure fairer access for the more backward groups within that category.
- Permitted for SC/ST by the 2024 Davinder Singh judgment; implemented mostly by State governments.

Creamy Layer Exclusion

- Identifies individuals who have escaped the effects of backwardness within a category.
- Excludes them from reservation benefits altogether, not just from a sub-quota.
- Applied to OBCs since Indra Sawhney (1992); Centre opposes extending it to SC/ST.

Despite Reputation, India's Per-Unit Space Launch Cost Highest

‘Despite reputation, India’s per-unit space launch cost highest’

Jacob Koshy

India spends more to put a kilogram of payload into orbit than any other major spacefaring nation, mar-
ring its public image as a cost-effective launcher, according to a new peer-reviewed analysis of more than six decades of rocket launches published in *Economics Letters*.

The authors, Alessio Terzi of the University of Cambridge and Francesco Nicoli of Politecnico di To-

rino, estimate that it cost \$13,302 to send a kilogram to low-earth orbit on Indian rockets in 2025 – higher than Europe (\$9,897), Russia (\$6,682), China (\$5,809) and Japan (\$5,287), and the U.S. (\$3,225). The global average was \$3,868.

The authors say the high cost is due to ISRO mostly flying small rockets, due to which the fixed cost of each launch is spread across very little payload. The study finds that only

the U.S. and Europe have shown a statistically significant experience curve – meaning costs falling steadily as cumulative launches grow – since 2010. India, the authors write, simply doesn’t launch often enough to bring its costs down.

The analysis comes as India is trying to increase the number of launches through private industry. Since opening the sector in 2020, the country has registered about 400 star-

tups with its regulator, IN-SPACe. In July, Hyderabad’s Skyroot Aerospace flew India’s first privately built orbital rocket, making India only the third nation – after the U.S. and China – with private orbital launch capability.

But while IN-SPACe had projected 30 launches between January 2024 and March 2025, ISRO managed fewer than half. India recorded only five launches in 2025. The gap is pushing Indian satellite opera-

tors abroad. In November 2024, NewSpace India flew GSAT-N2, a 4,700-kg communications satellite, on a Falcon 9 from Cape Canaveral – ISRO’s first use of a SpaceX rocket. This spacecraft was heavy for India’s LVM-3 rocket and Europe’s Arianespace had no operational launcher available. Two months on, Bengaluru startups Pixxel and Digantara placed India’s first private commercial satellites in orbit aboard a SpaceX rideshare from Califor-

nia. Other startups such as GalaxEye have also booked Falcon 9 slots for 2026.

The dependence matters because launch cost, the authors argue, is becoming a geopolitical vise: “SpaceX ... was responsible for 75% of global payload to orbit in 2025 ... going forward, it is not implausible that a U.S. administration might decide to weaponise this dependency or use it as a bargaining chip to coerce other nations.”

Despite Reputation, India's Per-Unit Space Launch Cost Highest

- **The Finding**

- A new peer-reviewed study in Economics Letters finds India spends more per kilogram of payload to orbit than any other major spacefaring nation in 2025.
- India's per-unit cost stands at \$13,302/kg to low-earth orbit higher than Europe (\$9,897), Russia (\$6,682), China (\$5,809), Japan (\$5,287), and the US (\$3,225); the global average was \$3,868.

- **Why Costs Are High**

- The high cost is attributed mainly to ISRO flying small rockets, spreading the fixed cost of each launch across very little payload.
- The study finds a statistically significant 'experience curve' costs fall steadily as cumulative launches grow but India simply doesn't launch often enough to bring costs down.

- **Growing Dependence on Foreign Launchers**

- In November 2024, NewSpace India flew the GSAT-N2 satellite on a Falcon 9 from Cape Canaveral, ISRO's first use of a SpaceX rocket, since the satellite was too heavy for India's LVM-3 and Europe's Arianespace had no operational launcher available.
- Bengaluru startups Pixxel and Dhruva Space placed India's first private commercial satellites in orbit aboard a SpaceX rideshare; other startups like GalaxEye have booked Falcon 9 slots for 2026.

- **The Experience Curve in Rocketry**

- A well-documented economic phenomenon where unit costs fall predictably as cumulative production, or launches, increases the basis for firms like SpaceX achieving lower costs through high launch frequency.

Despite Reputation, India's Per-Unit Space Launch Cost Highest

\$13,302/kg

India's per-unit cost to low-earth orbit, 2025 — the highest among major spacefaring nations

\$3,868/kg

Global average per-unit launch cost, 2025

\$3,225/kg

United States' per-unit launch cost — the lowest among major players

5 vs 30

India's actual 2025 launches against IN-SPACe's projected target

CAG Audit Highlights Major Gaps in Green India Mission

CAG audit highlights major gaps in Green India Mission

The report flags inadequate convergence with other schemes, insufficient funding and weak monitoring. GIM is one of eight missions under the National Action Plan on Climate Change

Jacob Koshy
NEW DELHI

The Comptroller and Auditor General (CAG) has flagged major shortcomings in the implementation of the Green India Mission (GIM), including inadequate funding, weak coordination between government schemes, poor monitoring, and failure to meet key targets for improving forest cover and its quality.

The Union Ministry of Environment, Forest and Climate Change launched the GIM in 2014 with the aim of protecting, restoring, and enhancing the country's forest cover.

The CAG's audit examined the planning, implementation and monitoring of GIM interventions in 16 States and Union Territories between 2015-16 and 2024-25.

According to the audit report, while the target was to improve the quality of forest cover over 1.4 million hectares, improvement was observed only in 0.1384 million hectares – a “shortfall of 91.87%”.

Similarly, an increase in forest cover was recorded over only 0.03409 million hectares against a target of 1.4 million hectares, representing a 97.57% shortfall.

The GIM is one of eight missions under India's National Action Plan on Climate Change. Its objectives include improving ecosystem services such as biodi-



Forest failings: Green India Mission is one of the key programmes to support India's long-term low-carbon strategy. FILE PHOTO

versity, water and carbon sequestration, as well as increasing means of forest-based livelihood. The mission envisages increasing forest and tree cover over 5 million hectares and improving the quality of forest and tree cover over another 5 million hectares.

Tree cover

The mission is particularly important to India's climate commitments because enhancing forest and tree cover is a central component of India's Nationally Determined Contribution (NDC) under the Paris Agreement. India has committed to creating an additional carbon sink of 2.5-3 billion tonnes of CO₂ equivalent by 2030 through additional forest and tree cover.

The government's long-term low-carbon strategy identifies the GIM as one of the key programmes supporting this target.

The CAG attributed the

shortcomings to several factors, including inadequate convergence with other programmes, insufficient funding, deficiencies in planning and weak monitoring mechanisms.

The report found that the mission's planned convergence with programmes such as the Compensatory Afforestation Fund Management and Planning Authority (CAM-PA) and the Mahatma Gandhi National Rural Employment Guarantee Scheme (MGNREGS) was not effectively achieved. Other programmes, including Nagar Van Yojana and School Nursery Yojana, were also found to be operating largely in silos.

This lack of convergence also affected financing, the report said. The audit noted that the mission failed to secure ₹10,600 crore in proposed funding support. Against ₹2,000 crore approved by the Cabinet Committee on

Economic Affairs for the initial four years of the scheme, along with ₹400 crore from the 13th Finance Commission grants towards the States' share, only ₹1,149.14 crore, or 47.88%, was received through budgetary support during the 10 years examined, the audit found.

The audit also found weaknesses in financial controls: eight States and Union Territories did not maintain annual accounts, while accounts in other cases were often unaudited or contained discrepancies.

Opposition's criticism

The Congress criticised the government over the issues flagged by the CAG, with Rajya Sabha MP and former Environment Minister Jairam Ramesh calling the GIM a “gigantic fraud”. He said on X, “The Green India Mission has been a comprehensive failure – actually not just a failure but a gigantic fraud on the people of India.”

“When the Green India Mission was conceived in 2010 as part of (then) Prime Minister Manmohan Singh's National Action Plan on Climate Change (NAPCC), it placed strong emphasis on monitoring, planning, and effective implementation. It was never meant to be another green-washing exercise, but a genuine effort towards sustainable environmental change,” Mr. Ramesh said.

CAG Audit Highlights Major Gaps in Green India Mission

- **Launched in 2014 under the National Action Plan on Climate Change (NAPCC), the Green India Mission aims to:**
 - **Increase forest and tree cover on 5 million hectares**
 - **Improve the quality of forest cover on another 5 million hectares**
 - **Restore degraded ecosystems and enhance livelihoods of forest-dependent communities.**
- **Forest Cover :** All land more than 1 hectare in area with a tree canopy density of more than 10%, regardless of ownership, legal status, or land use. As per ISFR 2023, India's forest cover is 21.76% of total geographical area (~7.15 lakh sq. km).
- **Tree Cover :** Tree patches less than 1 hectare in area, including trees outside recorded forests such as along roads, canals, in urban areas, farmlands, parks, home gardens. Tree cover of India is about 3.41% of total geographical area (~1,12,014 sq. km as per ISFR 2023).

The National Forest Policy 1988 envisages to have a minimum of one-third of the total land area of the country under forest or tree cover.

CAG Audit Highlights Major Gaps in Green India Mission

- **The Findings**

- The CAG flagged major shortcomings in implementing the Green India Mission (GIM): inadequate funding, weak coordination between government schemes, poor monitoring, and failure to meet key forest cover targets.
- Against a target of improving forest cover quality over 1.4 million hectares, improvement was observed in only 0.11384 million hectares, a shortfall of 91.87%.
- Against a target of increasing forest cover over 1.4 million hectares, the increase recorded was only 0.03409 million hectares, a shortfall of 97.57%.

- **Poor Convergence and Monitoring**

- The mission's planned convergence with programmes like CAMPA and MGNREGA was not effectively achieved; other programmes such as Nagar Van Yojana and School Nursery Yojana operated largely in silos.
- Financial control weaknesses were found: 8 States/UTs did not maintain annual accounts, while accounts elsewhere were often unaudited or contained discrepancies.

CAG Audit Highlights Major Gaps in Green India Mission

Q2. A particular State in India has the following characteristics: (2012)

1. It is located on the same latitude which passes through northern Rajasthan.
2. It has over 80% of its area under forest cover.
3. Over 12% of forest cover constitutes the Protected Area Network in this State.

Which one among the following States has all the above characteristics?

- (a) Arunachal Pradesh
- (b) Assam
- (c) Himachal Pradesh
- (d) Uttarakhand

Thank You